

1 anything that is contained in the
2 narrative/supplemental we are addressing.

3 Two, it is not evidence.

4 Three, the officer has testified he knows
5 nothing about the supplement.

6 So it is not in the report.

7 So you are asking him to testify about
8 something he has no idea about.

9 MR. ROSARIO: No, I am not.

10 MR. ROSARIO: Q. I am asking: Do you
11 recognize there is a supplement, sir?

12 THE COURT: By virtue of his testimony, he
13 says: Yeah, supplements are prepared when there is
14 new information that has been offered in connection
15 with this incident.

16 But beyond that, he has no -- from what I
17 gather, he doesn't have any understanding, he has
18 never seen this thing before.

19 Am I correct?

20 THE WITNESS: That is correct.

21 MR. ROSARIO: All right.

22 THE COURT: So the Court --

23 MR. ROSARIO: Q. When a supplement is added,
24 new evidence is presented, what happens then?

25 A. Repeat the question.

26 Q. Say new evidence is found about a situation
27 and that supplement has been added. What then
28 happens? You, as the officer who made the original